COLORADO SUPREME COURT
2 East 14th Avenue
Denver, CO 80203

Original Proceeding
Pursuant to Colo. Rev. Stat. § 1-40-107(2)
Appeal from the Ballot Title Setting Board
In the Matter of the Title, Ballot Title, and Submission Clause for Proposed Initiative 2025-2026 #123 ("Voter Approval of New Fees and Fee Increases")

COURT USE ONLY

Case Number:

Petitioners:
Michael Fields and Steven Ward

v.

Respondents:
Title Board: Theresa Conley, Jason Gelender, and Kurt Morrison

Attorney for Petitioners:
Suzanne M. Taheri, #23411
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PETITION FOR REVIEW OF FINAL ACTION OF BALLOT TITLE SETTING BOARD CONCERNING PROPOSED INITIATIVE 2025-2026 #123 ("VOTER APPROVAL OF NEW FEES AND FEE INCREASES")

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Petitioners Michael Fields and Suzanne Taheri through undersigned counsel, respectfully petition this Court pursuant to C.R.S. § 1-40-107(2), to review the ballot title set by the Ballot Title Setting Board for Proposed Initiative 2025-2026 #123.

STATEMENT OF THE CASE

A. Procedural History of Proposed Initiative 2025-2026 #123

Proposed Initiative 2025-2026 #123 was filed with Legislative Council on July 8, 2025. A review and comment hearing was held July 22. The initiative was filed with the Title Board, and an initial hearing was held on August 6, 2025.

At the August 6, 2025 hearing, the Title Board declined to set title on the grounds that the measure did not constitute a single subject.

Proponents Michael Fields and Steven Ward timely filed a Motion for Rehearing to challenge the Board's single subject finding. A rehearing occurred on August 20, 2025, and the Board denied the Motion for Rehearing in its entirety. Petitioners now appeal the Title Board's decision on single subject.

B. Jurisdiction

Petitioners are entitled to review before the Supreme Court pursuant to C.R.S. § 1-40-107(2). Petitioners were present at the initial hearing and rehearing. Additionally, Petitioners timely filed this Petition for Review seven days from the date of the hearing on the Motion for Rehearing. C.R.S. § 1-40-107(2).

As required by C.R.S. §1-40-107(2), attached to this Petition for Review are certified copies of: (1) the draft, amended, and final version of the initiative filed by the Proponents; (2) the original ballot title set for this measure; (3) the Motion for Rehearing filed; and (4) the ruling on the Motion for Rehearing.

Petitioners believe that the Title Board erred by denying the Motion for Rehearing and refusing to set a ballot title.

GROUNDS FOR APPEAL

Initiative #123 has the singular purpose of requiring voter approval on certain government charges. These include certain fees and taxes. The Board incorrectly separates taxes and fees as different subjects. However, they are properly and necessarily connected because both a tax and a fee involve money traveling from the pocket of the citizen to the government coffers.

Initiative #123 is designed to reinstate the right of Colorado residents to consent whenever the government demands more money from them. “[J]ust

because a proposal may have different effects or that it makes policy choices that are not inevitably interconnected [does not mean] that it necessarily violates the single-subject requirement. It is enough that the provisions of a proposal are connected." *In re Title v. John Fielder*, 12 P.3d 246, 254 (Colo. 2000), citing *In re Proposed Initiative for 1999-2000 # 25*, 974 P.2d at 463.

The following is an advisory list of the issue to be addressed in Petitioners' brief:

1. Whether the Board improperly determined that Proposed Initaitive 2025-2026 #123 contains multiple subjects.

PRAYER FOR RELIEF

Petitioners respectfully request that, after consideration of the parties' briefs, this Court determine that Proposed Initiative 2025-2026 #123 constitutes a single subject and remand the initiative to the Title Board for immediate correction.

Respectfully submitted this 27th day of August, 2025

s/ Suzanne M. Taheri, #23411
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CERTIFICATE OF SERVICE

I hereby certify that on this 27rd day of August, 2025, a true and correct copy of the PETITION FOR REVIEW OF FINAL ACTION OF BALLOT TITLE SETTING BOARD CONCERNING PROPOSED INITIATIVE 2025-2026 #123 ("VOTER APPROVAL OF NEW FEES AND FEE INCREASES") was served via the Colorado Court's E-Filing System to the following: Emily Buckley, Office of the Attorney General, 1300 Broadway, 6th Floor, Denver, CO 80203, Counsel for the Title Board.

s/ Suzanne Taheri